



Land Drainage (Amendment) Act 1976

1976 CHAPTER 17

An Act to amend the Land Drainage Act 1930, the Land Drainage Act 1961, Part IV of the Agriculture (Miscellaneous Provisions) Act 1968 and related enactments. [27th May 1976]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. In this Act "the 1930 Act" means the Land Drainage Act 1930, "the 1961 Act" means the Land Drainage Act 1961, 1930 c. 44. "the 1968 Act" means the Agriculture (Miscellaneous Provisions) Act 1968 and "the Minister" means the Minister of 1961 c. 48. 1968 c. 34. Agriculture, Fisheries and Food.

2.—(1) In paragraph 2 of Part I of Schedule 3 to the 1930 Voting Act (under which the number of votes to which an elector at an election of members of an internal drainage board is entitled depends upon the rateable value of the property in respect of which he is entitled to vote) the reference to rateable value shall be taken as a reference to—

(a) in the case of any land as respects which a drainage rate levied at the relevant date would, in accordance with section 24(4) of the 1930 Act, be assessable by reference to annual value (as determined for drainage rates purposes), the value on which such a drainage rate would be assessable ;

(b) in the case of any land as respects which a drainage rate levied at the relevant date would, in accordance

entitlement and qualifications for election at elections of members of internal drainage boards.

1962 c. 39.

with section 22(4) of the 1961 Act, be assessable by reference to rateable value, the value on which such a rate would be assessable if there were then in force a resolution that section 1 of the Drainage Rates Act 1962 should apply for the purposes of drainage rates made by the board (whether or not there is in fact such a resolution then in force).

(2) In paragraph 1 of Part II of Schedule 3 to the 1930 Act (under which one of the qualifications for election as a member of an internal drainage board is framed by reference to the annual value of land in the electoral district owned or occupied by the candidate, and another is framed by reference to the annual value of such land owned by a person nominating the candidate) the references to annual value shall be taken as references to—

- (a) in the case of any land as respects which a drainage rate levied at the relevant date would (in accordance with section 24(4) of the 1930 Act) be assessable by reference to annual value (as determined for drainage rates purposes), that value ;
- (b) in the case of any land as respects which a drainage rate levied at the relevant date would, in accordance with section 22(4) of the 1961 Act, be assessable by reference to rateable value, the value arrived at by applying to the rateable value (within the meaning of that section) the relative fraction applied for the purposes of that section in respect of the last drainage rate made before the relevant date (whether that fraction was applied in respect of value or in respect of poundage).

(3) In subsection (2)(b) above the reference to the relative fraction is a reference to the fraction arrived at in accordance with section 23 of the 1961 Act.

(4) In this section “the relevant date” means the date as at which, in accordance with rules made under section 33 of the 1930 Act, the voting entitlement of electors at the election in question or, as the case may be, the qualifications of candidates for the election in question are determined.

Petitions and
appeals under
the Land
Drainage Act
1961.

3.—(1) Subsection (2) below shall have effect in substitution for the concluding paragraph (the words from “In relation to” to the end of the subsection) of subsection (2) of section 52 of the 1961 Act (number of qualified persons sufficient for purposes of making a petition or appeal under that Act in relation to an internal drainage district).

(2) In relation to land assessed by reference to rateable value, in accordance with section 22(4) of the 1961 Act, the references in paragraph (c) of section 52(2) of the 1961 Act to the annual value shall be construed as references to the value arrived at by applying to the rateable value (within the meaning of the said section 22) the relative fraction applied for the purposes of the said section 22 in respect of the drainage rate referred to in that paragraph (whether that fraction was applied in respect of value or in respect of poundage).

(3) Section 2(3) above applies to the reference to the relative fraction in subsection (2) above as it applies to that reference in section 2(2)(b) above.

4.—(1) The following provisions of this section, which reproduce with minor amendments, and with an increase in the penalty for obstruction, the powers of entry of internal drainage boards provided by section 43 of the 1930 Act and section 40 of the 1961 Act, shall have effect in substitution for the provisions of those sections; and any document expressed as an authority to enter for the purposes of those sections or either of them shall have effect accordingly.

(2) Without prejudice to any other enactment conferring powers of entry, a person authorised by an internal drainage board may, after producing, if so required, a duly authenticated document showing his authority, at all reasonable times—

- (a) enter any land for the purpose of exercising any function of the board;
- (b) without prejudice to paragraph (a) above, enter and survey any land (including the interior of any mill through which water passes or in connection with which water is impounded) and take levels of the land and inspect the condition of any drainage work on it; and
- (c) inspect and take copies of any Acts of Parliament, awards or other documents in the possession of any internal drainage board or navigation authority which relate to land drainage and confer any powers or impose any duties on that board or authority.

(3) A person entitled under this section to enter any land may take with him such other persons and such equipment as may be necessary and if the land is unoccupied he shall, on leaving it, leave it as effectually secured against trespassers as he found it.

(4) Except in an emergency, admission to any land shall not be demanded as of right under this section unless notice

in writing of the intended entry has been given to the occupier and, if the land is used for residential purposes or the demand is for admission with heavy equipment, has been given not less than seven days before the demand is made.

(5) Section 34(3) of the 1930 Act shall extend to any injury sustained by any person by reason of the exercise of a power conferred by this section.

(6) If any person intentionally obstructs or impedes any person exercising a power conferred by this section he shall be liable on summary conviction to a fine not exceeding £200.

(7) This section shall not apply in relation to land belonging to Her Majesty in right of the Crown or the Duchy of Lancaster, in relation to land belonging to the Duchy of Cornwall or in relation to land belonging to a government department.

Powers of entry of local authorities for land drainage purposes.

5.—(1) Subsections (2) to (7) of section 4 above shall apply in relation to local authorities, and in relation to their functions under the 1930 Act and the 1961 Act, as they apply in relation to, and to the functions of, internal drainage boards.

(2) The powers of entry conferred on local authorities by subsection (1) above are in substitution for the powers of entry exercisable by such authorities under section 51 of the 1930 Act and by virtue of section 30(9) and 34(1) of the 1961 Act.

(3) In this section “local authorities” means any of the following, namely, the council of a county, district or London borough, the Common Council of the City of London and the Greater London Council.

Meaning of agricultural buildings for purposes of drainage charges and drainage rates.
1967 c. 9.

6. For the avoidance of doubt it is hereby declared that in section 16 of the 1961 Act (which, as amended by section 116(6) of the General Rate Act 1967, contains, for the purposes of the provisions of the 1961 Act relating to drainage charges, a definition of agricultural buildings by reference to the meaning given to that expression by section 26(4) of the said Act of 1967) and in section 22(2) of the 1961 Act (which equates agricultural buildings with agricultural land for the purposes of assessing drainage rates, and which, as amended by section 116(6) of the General Rate Act 1967, also defines agricultural buildings by reference to the meaning given to that expression by section 26(4) of the said Act of 1967) the reference to the General Rate Act 1967 is a reference to that Act as amended by the Rating Act 1971.

1971 c. 39.

Compensation for loss of office, etc.

7.—(1) The provisions of subsections (2) to (6) below shall have effect in substitution for section 67 of the 1930 Act.

(2) The Minister shall by regulations provide for the payment, subject to such exceptions or conditions as may be specified in the regulations, of compensation to any officer or other employee of a relevant authority who suffers loss of employment or loss or diminution of emoluments which is attributable to—

- (a) a scheme under section 4 of the 1930 Act ;
- (b) an order under section 11 of the 1930 Act ; or
- (c) an agreement under section 25 of the 1961 Act.

(3) For the purposes of subsection (2) above the relevant authorities are—

- (a) in cases falling within paragraph (a) of that subsection, drainage authorities within the meaning of the 1930 Act ; and
- (b) in cases falling within paragraph (b) or (c) of that subsection, internal drainage boards.

(4) Any compensation payable by virtue of this section shall be paid—

- (a) in the case of compensation for loss attributable to a scheme under section 4(1)(a) or an order under section 11 of the 1930 Act, by the water authority to whom the transfer effected by the scheme or order is made ;
- (b) in the case of compensation for loss attributable to an agreement under section 25 of the 1961 Act, by the internal drainage board with whom the agreement is made ; and
- (c) in the case of compensation for loss attributable to a scheme under section 4(1)(b) of the 1930 Act, by such water authority as may be specified for this purpose in the scheme or such internal drainage board or boards as may be so specified.

(5) Regulations under this section—

- (a) may make different provision in relation to different classes of persons ;
- (b) may include provision as to the manner in which and the persons to whom any claim for compensation by virtue of this section is to be made, and for the determination of all questions arising under the regulations.

(6) Regulations under this section shall be made by statutory instrument and shall be subject to annulment in pursuance of a resolution of either House of Parliament.

8.—(1) The amendments in Schedule 1 to this Act shall have effect (being amendments for increasing the fines payable in respect of offences created by the 1930 Act, the 1961 Act and

Part IV of the 1968 Act and for removing inconsistencies at present existing as between certain offences of a similar nature created by those Acts).

(2) For the avoidance of doubt it is hereby declared that section 50(4) of the 1968 Act (offences committed by body corporate) does not apply in relation to offences under the enactments applied for the purposes of section 26 of that Act by subsection (3) of the said section 26.

Minor
amendments
and repeals.

9.—(1) Schedule 2 to this Act, which makes minor amendments to the 1930 Act, the 1961 Act, the 1968 Act and related enactments, including amendments consequential on the foregoing provisions of this Act, shall have effect.

(2) The enactments and instruments specified in Schedule 3 to this Act (which include certain spent enactments) are hereby repealed to the extent specified in the third column of that Schedule.

Construction
etc.

10.—(1) Except in so far as the context otherwise requires, any reference in this Act to an enactment is a reference to that enactment as amended, extended or applied by or under any other enactment, including any enactment contained in this Act.

(2) Without prejudice to subsection (1) above, references in this Act to land assessed in accordance with section 22(4) of the 1961 Act (assessment of land for drainage rates by reference to rateable value) include references to land assessed in accordance with the said section 22(4) by virtue of a determination under section 31 of the 1968 Act (which provides for assessment by reference to an apportioned rateable value in certain cases), and references to rateable value shall be construed accordingly.

(3) There shall be paid out of money provided by Parliament any increase attributable to this Act in the sums so payable under any other Act.

(4) This Act may be cited as the Land Drainage (Amendment) Act 1976.

(5) This Act shall come into force on such day as the Minister may by order made by statutory instrument appoint.

SCHEDULES

SCHEDULE 1

Section 8.

INCREASE OF PENALTIES AND HARMONISATION OF CERTAIN OFFENCES

1. In section 10(3) of the 1930 Act (fine for obstructing or impeding a person authorised by a water authority to inspect and to take copies of documents of an internal drainage board) for "five pounds" substitute "two hundred pounds".

2.—(1) In section 26(4A) of the 1930 Act (failing to provide information, or providing false information, with respect to name and address of occupier of hereditament for drainage rates purposes)—

- (a) for "require" substitute "serve a notice on" and after "levied" insert "requiring him";
- (b) after "fails" insert "without reasonable excuse";
- (c) after "knowingly" insert "or recklessly";
- (d) for "false statement" substitute "statement that is false in a material particular"; and
- (e) for "five pounds" substitute "two hundred pounds".

(2) After section 26(4A) of that Act insert—

"(4B) Where a person is convicted under subsection (4A) above in respect of a failure to comply with a notice and the failure continues after the conviction, then, unless he has a reasonable excuse for the continuance of the failure, he shall be guilty of a further offence under that subsection and may, on summary conviction, be punished accordingly."

3. In section 44(4) of the 1930 Act (fine for unlawfully obstructing a watercourse) for "one hundred pounds" substitute "four hundred pounds", and in section 44(5) of that Act (daily fine for failure to obey court order to remove the obstruction) for "five pounds" substitute "forty pounds".

4. In section 47(8) of the 1930 Act (fine for contravention of or failure to comply with a byelaw and daily fine for continued contravention or failure) for "fifty pounds" substitute "four hundred pounds" and for "five pounds" substitute "forty pounds".

5. In section 12 of the 1961 Act (failure to provide information, or providing false information, with respect to name and address of occupiers of land)—

- (a) for "require" substitute "serve a notice on" and after "area" insert "requiring him";
- (b) after "fails" insert "without reasonable excuse";
- (c) after "knowingly" insert "or recklessly";
- (d) for "misstatement" substitute "statement that is false in a material particular";

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- (e) for "five pounds" substitute "two hundred pounds"; and
 (f) renumber the section as subsection (1) of the section and add—

"(2) Where a person is convicted under subsection (1) above in respect of a failure to comply with a notice and the failure continues after the conviction, then, unless he has a reasonable excuse for the continuance of the failure, he shall be guilty of a further offence under that subsection and may, on summary conviction, be punished accordingly."

1936 c. 49.

6. In subsection (5) of section 28 of the 1961 Act (which, with modifications, applies to notices under that section the provisions of section 290(2) to (7) of the Public Health Act 1936) insert after "subsection (6)" in paragraph (c) "for the words 'five pounds' there shall be substituted 'two hundred pounds' and".

1967 c. 9.

7. In section 26 of the 1968 Act (which, as amended by the General Rate Act 1967, applies, in respect of a failure to give information, or giving false information, under that section, the provisions of section 82(4) and (5) of the General Rate Act 1967, and of section 82(6) so far as it provides for a fine) add at the end "but so that, in their application for the purposes of this section, the fines under section 82(4) and (6) shall, instead of being, respectively, twenty pounds and one hundred pounds, be in both cases two hundred pounds".

Section 9(1).

SCHEDULE 2

MINOR AMENDMENTS

1930 c. 44.

The Land Drainage Act 1930

1973 c. 37.

1. In section 4 of the 1930 Act (schemes for re-organisation) subsection (1A) (which was inserted by paragraph 21(4) of Schedule 8 to the Water Act 1973) shall (without prejudice to the duty of a water authority, under section 19(1) of the Water Act 1973, to delegate their functions under the said section 4 to their regional land drainage committee) be omitted.

2. In sections 7(3), 36(3), 42(5) and 44(5) of the 1930 Act (recovery of expenses by water authorities and internal drainage boards) omit the words "summarily as a civil debt".

3. In section 8 of the 1930 Act (power to vary awards) subsection (1A) (which was inserted by paragraph 22(2) of Schedule 8 to the Water Act 1973) shall (without prejudice to the duty of a water authority, under section 19(1) of the Water Act 1973, to delegate their functions under the said section 8 to their regional land drainage committee) be omitted.

4. In section 9(1) of the 1930 Act (commutation by water authority of obligations to repair by reason of tenure etc.) after "work" insert "in the area of the authority".

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5. In section 10(3) of the 1930 Act (obstructing or impeding person authorised by water authority to inspect and to take copies of documents of internal drainage board) after "who" insert "intentionally".

6. In section 11 of the 1930 Act (transfer of functions of internal drainage boards) subsection (2) (which was added by paragraph 23 of Schedule 8 to the Water Act 1973) shall (without prejudice to the duty of a water authority, under section 19(1) of the Water Act 1973, to delegate their functions under the said section 11 to their regional land drainage committee) be omitted.

7. In section 13 of the 1930 Act (provisions with respect to the making and validity of orders)—

- (a) after "all orders" insert "by the Minister";
- (b) for "provisional only" substitute "subject to special parliamentary procedure";
- (c) after "shall", in the third place where that word occurs, insert "except as provided by paragraph 5 thereof";
- (d) for the words "such orders under this Part of this Act as are not confirmed by Parliament" substitute "all orders made by the Minister under this Part of this Act".

8. In section 22(3) of the 1930 Act (precepts issued by water authorities to internal drainage boards) for "in a form to be prescribed by the Minister" substitute "in such form as the Minister may direct".

9. In section 23 of the 1930 Act (amounts due from local authorities to water authorities under the Water Act 1973) after subsection (1) insert—

"(1A) Any amount due to a water authority from the council of a London borough under the Water Act 1973 shall be defrayed as the council, having regard to the benefit, if any, derived by various areas, think just and equitable as general expenses or as special expenses chargeable on such part or parts of the London borough within the water authority's area as the council think fit." 1973 c. 37.

10. In the proviso to subsection (3) of section 24 of the 1930 Act (owner deemed to be in occupation of unoccupied land for drainage rating purposes) after "Act" insert "and Part I of the Third Schedule to this Act"; and in subsection (6) of that section (differential drainage rates) omit the words from "So long as any such order" to the end of the subsection.

11.—(1) In section 26(4) of the 1930 Act (incidence of drainage rates) omit "or is deemed to be" in each place where those words occur and omit "or is deemed to have been".

(2) In paragraph (c) of the said section 26(4) after "shall" insert "(subject to any agreement to the contrary)".

(3) In paragraph (e) of the said section 26(4) for the words from "in respect of" to "paragraph (d) of this subsection" substitute "the full amount of an occupier's rate", for the words "so much of

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any sum so paid in excess" substitute "such sum" and for the words "the said paragraph (d)" substitute "paragraph (d) of this subsection".

1961 c. 48.

12. In section 27(2) of the 1930 Act (publication of drainage rate) after "Any such notice" insert "must state the amount of the rate, the relative fraction for the purposes of section 23 of the Land Drainage Act 1961 applicable in respect thereof, and the date on which the rate was made and".

13. In section 29 of the 1930 Act—

- (a) in subsection (3) (notice of apportionment of annual value for drainage rates purposes) after "decision" where it first occurs insert "together with a statement in writing of the rights of appeal conferred by this section";
- (b) in subsection (4) (power of internal drainage boards to get information from inland revenue authorities) for "surveyors of taxes" substitute "inspector of taxes", omit "in force" and at the end add "(being the annual value for the purposes of Schedule A shown in the assessments for that year signed and allowed under section 35 of the Income Tax Act 1952 or, in cases where appeals were made against the assessments, the annual values for those purposes as finally determined in the proceedings on or in consequence of the appeals)".

1968 c. 34.

14. In section 30(1) of the 1930 Act (appeal against drainage rates) and section 31(3) of that Act (recovery of drainage rates) after "section 29(3) of this Act" insert "or section 32 of the Agriculture (Miscellaneous Provisions) Act 1968".

15. In section 34 of the 1930 Act (general drainage powers of drainage boards)—

- (a) in subsection (3) (compensation for injury sustained by reason of the exercise of powers under the section) after "under this section" insert "or under section 6(2) above"; and
- (b) in subsection (4) (nothing in the section to be taken as authorising entry on land except for the purpose of maintaining existing works) after "this section" insert "or section 6(2) above".

16. In section 35(14) of the 1930 Act (maintenance of water-courses) before "this section" insert "subsections (11) and (12) of" before "the main river" insert "any watercourse forming part of" and at the end add "and in the said subsection (11) 'local authority' means any of the following, namely, the council of a county, district or London borough, the Common Council of the City of London and the Greater London Council".

17. In section 37(1) of the 1930 Act (commutation by drainage board of obligations to repair by reason of tenure etc.) after "work" where that word first occurs insert "in the district of the board".

18. In section 41(1) of the 1930 Act (power to vary navigation rights) for the words "in the case of a navigation authority which"

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substitute "it appears to the Minister that a navigation authority", after "vested in it," insert "and", and for "any navigation authority" substitute "the navigation authority".

19. In section 42(2) and in section 42(4) of the 1930 Act (power of drainage board to levy navigation tolls) insert "subsection (1) of" before "this section" and in paragraph (ii) of the said section 42(2) for the words from "provisional only" to the end of the paragraph substitute "subject to special parliamentary procedure".

20. In section 44 of the 1930 Act (obstructions in watercourses)—

(a) in subsection (3) for "the person by whom the said obstruction has been erected or raised or otherwise altered" substitute "such person as is specified in subsection (7) of this section";

(b) for subsection (7) substitute—

"(7) The person upon whom a notice may be served under subsection (3) of this section is—

(a) in a case where the person by whom the obstruction has been erected or raised or otherwise altered has, at the time when the notice is served, power to remove the obstruction, that person;

(b) in any other case, any person having power to remove the obstruction."

21. For section 45 of the 1930 Act (power of internal drainage boards to acquire and dispose of land) substitute the following (which reproduces with minor amendments the said section 45 and the enactments applied by that section):—

"Powers of internal drainage boards to acquire and dispose of land.

45.—(1) An internal drainage board may, for any purpose in connection with the performance of any of their functions, acquire by agreement or, if authorised by the Minister, compulsorily, any land, whether inside or outside their area.

(2) An internal drainage board may exercise the powers conferred by subsection (1) above so as to acquire interests in or rights over land by way of securing the creation of new interests or rights in their favour (as well as by acquiring interests or rights already in existence).

(3) Where an internal drainage board exercise their powers under this section so as to acquire compulsorily an interest in or right over land by way of securing compulsorily the creation in their favour of a new interest or right, the enactments relating to compensation for the compulsory purchase of land shall, in their application to such acquisition, have effect with the necessary modifications and the Acquisition of Land (Authorisation Procedure) Act 1946 and the Compulsory Purchase Act 1965 shall, in their application to any such acquisition, have effect with such modifications as may be prescribed. 1946 c. 49. 1965 c. 56.

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1855 c. 58.

(4) Where an internal drainage board propose to acquire by agreement any land belonging to Her Majesty in right of the Duchy of Lancaster, the Chancellor and Council of that Duchy may sell the land to the board and the land may be granted to them and the proceeds of sale shall be paid and dealt with as if the land had been sold under the authority of the Duchy of Lancaster Lands Act 1855.

(5) Nothing in this section shall authorise the compulsory acquisition of any land belonging to Her Majesty in right of the Crown or the Duchy of Lancaster, or of any land belonging to the Duchy of Cornwall or a government department.

(6) Subject to subsections (7) to (9) below, an internal drainage board may dispose of land held by them in any manner they wish.

(7) Except with the consent of the Minister, an internal drainage board shall not dispose of land under this section, otherwise than by way of a short tenancy, for a consideration less than the best that can reasonably be obtained.

(8) Except with the consent of the Minister, an internal drainage board shall not dispose under this section, otherwise than by way of a short tenancy, of land which (whether before or after the commencement of this Act) has been acquired by the board compulsorily, or acquired by them by agreement at a time when they were authorised to acquire it compulsorily.

(9) For the purposes of this section a disposal of land is a disposal by way of a short tenancy if it consists of the grant of a term not exceeding 7 years, or the assignment of a term which at the date of the assignment has not more than 7 years to run."

22. In section 48 of the 1930 Act (appointment of officers of internal drainage boards) for the words from "appoint" to the end of the section substitute "pay to persons employed by them such reasonable remuneration as they think fit".

23. In section 50(2) of the 1930 Act (general drainage powers of local authorities) before "drainage boards" insert "internal".

24. In section 53 of the 1930 Act (expenses and borrowing of county and London borough councils) the references to that Act shall include references to the 1961 Act; and in subsection (1) of that section (which, as amended by paragraph 1 of Schedule 14 to the London Government Act 1963 and paragraph 25(5) of Schedule 29 to the Local Government Act 1972, makes provision with respect to the expenses of county councils, London borough councils and the Common Council of the City of London) omit the reference to the Common Council of the City of London.

1963 c. 33.
1972 c. 70.

25. In section 55(1) of the 1930 Act (grants in respect of drainage works)—

- (a) omit the words “ under this Act ” ;
- (b) insert “ drainage ” before “ works ”, in both places where that word occurs ;
- (c) in paragraph (a) of the proviso after “ is being ” insert “ or has been ”.

26. In section 59 of the 1930 Act (power of Minister to authorise landowners to execute drainage works)—

- (a) at the end of subsection (6) add “ and after receiving the report of such inquiry he shall proceed as provided by subsection (5) above ” ;
- (b) in the proviso to subsection (7), for the words from “ no entry ” onwards substitute “ every person interested in the land (other than any person who is one of those authorised to execute the works) shall be entitled to compensation for any injury suffered by him in respect of that interest by reason of the works ” ;
- (c) after subsection (7) insert—

“ (7A) In case of dispute as to the amount of any compensation payable under subsection (7) above, the amount shall be determined by the Lands Tribunal.”.

27. In section 70 of the 1930 Act (expenses of Minister) omit the words “ to such an amount as the Treasury may sanction ”.

28. For section 72 of the 1930 Act (power of the Minister to hold inquiries) there shall be substituted—

“ 72.—(1) The Minister may cause to be held such inquiries as he considers necessary or desirable for the purposes of the Land Drainage Acts.

(2) The provisions of section 250(2) to (5) of the Local Government Act 1972 (which relate to the giving of evidence at and defraying the cost of local inquiries) shall apply for the purposes of any inquiry held pursuant to subsection (1) above or any other provision of the Land Drainage Acts, but with the omission of the word “ local ” from subsection (4).

(3) In subsection (1) above “ the Land Drainage Acts ” means this Act, the Land Drainage Act 1961, Part IV of the Agriculture (Miscellaneous Provisions) Act 1968 and Part V of the Agriculture Act 1970.”.

29. In section 74(1) of the 1930 Act (power of the Minister to make regulations) the second reference to that Act shall include a reference to the 1961 Act, Part IV of the 1968 Act and Part V of the Agriculture Act 1970.

30. In section 75 of the 1930 Act (notices) after “ this Act ” insert “ the Land Drainage Act 1961 or Part IV of the Agriculture (Miscellaneous Provisions) Act 1968 ” and after “ any person ” insert “ shall be in writing and ”.

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31. In section 81 of the 1930 Act (interpretation)—

(a) in the definition of “drainage” after “water”, where it first occurs, insert “(including sea water)”, after “irrigation” insert “other than spray irrigation” and omit “and the supply of water”; and

(b) at the end of the section add the following paragraph—

“References in this Act to the execution of drainage works include references to the improvement of drainage works, and in section 7 the reference includes also reference to the maintenance of drainage works.”.

32. In section 82(2) of the 1930 Act (exercise of local Act powers where drainage boundaries are altered), for “a drainage district or drainage area” substitute “an internal drainage district”, for “drainage board of the district or area” substitute “internal drainage board of the district” and omit “or area” in the second place where those words occur.

1949 No. 2393. 33. In Part III of Schedule 2 to the 1930 Act (validity of orders), in paragraph 5 (which was added by the Statutory Orders (Special Procedure) (Substitution) Order 1949) omit the words “paragraphs 2 to 4 of” and for “those provisions” substitute “paragraphs 2 to 4 of this Part of this Schedule”.

34. In paragraph 1 of Part I of Schedule 3 to the 1930 Act (persons to vote at election of members of internal drainage board) after “land” where it first occurs insert “in a board’s district”, and in paragraph 2 of the said Part I in the first column for “exceeds £1000” substitute “amounts to £1000 or more”.

The Drainage Rates Act 1958

1958 c. 37. 35.—(1) Sub-paragraph (2) below shall have effect in substitution for subsections (2) to (6) of section 1 of the Drainage Rates Act 1958 (annual value for purposes of drainage rates) and the reference to that section in section 1(2)(a) of the Drainage Rates Act 1963 shall be construed accordingly.

1963 c. 10. (2) For the purposes of section 1(1) of the said Act of 1958 the annual value of any land for the purposes of Schedule A as determined for the purposes of the year of assessment 1962-63, is its annual value for the purposes of Schedule A as shown in the assessment for that year signed and allowed under section 35 of the Income Tax Act 1952 or, in any case where an appeal was made against the assessment, its annual value for those purposes as finally determined in the proceedings on or in consequence of the appeal.

1952 c. 10.

The Land Drainage Act 1961

1961 c. 48. 36. In subsection (1) (power of water authority to raise revenue by means of general drainage charges) of section 1 of the 1961 Act (as substituted by paragraph 12(1) of Schedule 5 to the Water Act 1973) after “district” insert “in their area”.

1973 c. 37.

37. In section 1A of the 1961 Act (which is one of the sections substituted for section 1 of that Act by paragraph 12 of Schedule 5 to the

Water Act 1973, and makes provision with respect to the amount of general drainage charges) after subsection (3) insert the following subsection—

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“(3A) An order under this section shall be made by statutory instrument, shall be subject to annulment in pursuance of a resolution of either House of Parliament, and may be varied or revoked by a subsequent order under this section.”.

38. Section 3 of the 1961 Act (designation of watercourses and special drainage charge) shall (without prejudice to the duty of a water authority, under section 19(1) of the Water Act 1973, to delegate their functions under the said section 3 to their regional land drainage committee) have effect as though the amendments to the said section 3 contained in paragraph 72(1) and (2) of Schedule 8 to the Water Act 1973 had not been made, and shall have effect also as though the last amendment to subsection (9) contained in paragraph 25(1) of Schedule 29 to the Local Government Act 1972 (substitution of certain words for “it”) had not been made.

39. In paragraph (c) of section 5(4) of the 1961 Act after “may” insert “(subject to any agreement to the contrary)”.

40. In section 6(2) of the 1961 Act (publication of drainage charges) for “that area” substitute “the area in respect of which the charge was raised”.

41. In section 8 of the 1961 Act (amendments as respects drainage charge) after subsection (3) add—

“(4) Where an amendment is made in pursuance of this section any amount overpaid shall be repaid or allowed and any amount underpaid may be recovered as if it were arrears of the charge.”.

42. In section 11 of the 1961 Act (agreements for assessment to and recovery of drainage charge)—

(a) at the end of subsection (2) insert “and, in relation to any water authority, any chargeable land”;

(b) omit subsection (3) (which was inserted by paragraph 25(2) of Schedule 29 to the Local Government Act 1972).

1972 c. 70.

43. In section 23(2) of the 1961 Act (notice of relative fraction for drainage rates purposes) for the words from the beginning to “the notice”, in the second place where those words occur, substitute “The notice of the rate given under section 27 of the Act of 1930 and stating, in accordance with that section, the relative fraction”.

44.—(1) In paragraph (b) of section 23(4) of the 1961 Act (annual value for the purposes of that section) for the words from “(apportioned)” to the end of the paragraph substitute “or in any case where an appeal was made against the assessment, its annual value under Schedule A as finally determined in the proceedings on or in consequence of the appeal (apportioned where the hereditament forms part only of any land in respect of which an assessment to income tax was made under Schedule A for the year of assessment 1962-63).”.)

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(2) Omit section 23(5) of the 1961 Act (power of internal drainage board to obtain information from tax authorities).

45. In section 25(4) of the 1961 Act (whereby agreements entered into by an internal drainage board under that section may provide for amending the constitution of the board) after "appoint members of the board" insert "in addition to the elected members".

46. In section 28 of the 1961 Act (removal of obstruction from watercourses)—

(a) after subsection (5)(b) insert—

"(bb) in subsection (5) the words 'the part of the watercourse where the impediment occurs or land adjoining that part' shall be substituted for the words 'the premises in question';";

(b) at the end of subsection (5)(c) add "and after the words 'and he shall be liable' there shall be inserted 'on summary conviction'";

(c) at the end of subsection (6) add "(but no other provision of the said Act of 1936 shall apply in relation to the said section two hundred and ninety as applied by this section)".

47. In section 30(9) of the 1961 Act (schemes for drainage of small areas) before "drainage board" insert "internal", before "the Act of 1930" insert "sections 34 and 38 of", after "restrictions" insert "and liabilities" and for "that Act" substitute "those sections".

48. In section 34 of the 1961 Act (power of local authorities to undertake drainage works against flooding)—

(a) in subsection (2B) (which was inserted by paragraph 22(4) of Schedule 5 to the Water Act 1973) for the words from the beginning to "shall" substitute "A council other than the Greater London Council shall not";

(b) in subsection (4) for "expenses for special county purposes" substitute "special expenses chargeable on the district in respect of which they were incurred".

49. For section 38(3) of the 1961 Act substitute—

"(3) The council of a county or London borough, the Common Council and, as respects the main metropolitan watercourses (as defined in Schedule 14 to the London Government Act 1963), the Greater London Council, may by agreement with any person execute within the council's area, at his expense (excluding the amount of any grant paid under this subsection), any drainage works which that person is entitled to execute; and the Minister may, with the approval of the Treasury, make grants to a council in respect of the cost of any works executed by the council in pursuance of this subsection.

For the purposes of this subsection the area of the Common Council shall include the Inner Temple and the Middle Temple."

The London Government Act 1963

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50. In Schedule 14 to the London Government Act 1963 (functions of local authorities in London in respect to land drainage)—

- (a) in paragraph 1 after "the City", in both places, insert "and the Temples";
- (b) in paragraph 3 omit the words from "and without prejudice" onwards;
- (c) in paragraph 13 for the words from "under section 23" onwards substitute "(in like manner as under section 23(1A) of the Act of 1930)";
- (d) in paragraph 15(1) at the end of the definition of "local enactment" add "or, where the watercourse is a metropolitan watercourse by virtue of an order under sub-paragraph (2)(a) below, such enactments as may be specified in relation thereto by the order" and in the first column of paragraph (2A) of the Table (the paragraph inserted by section 7(4)(d) of the Greater London Council (General Powers) Act 1968) omit the words from "and any other watercourse" onwards;
- (e) after paragraph 15(2) insert—

"(2A) An order under sub-paragraph (2)(a) above shall specify the local enactments that are to be the local enactments for the purposes of this Schedule in relation to the watercourse or part of a watercourse dealt with by the order."

The Agriculture (Miscellaneous Provisions) Act 1968

1968 c. 34.

51. The special drainage charge raised by a water authority for any year shall be of such amount as may, subject to subsection (1) of section 23 of the 1968 Act, be determined by the authority's regional land drainage committee; and accordingly, that subsection shall be amended by substituting for the words "being an amount which exceeds" the words "and such amount shall be determined by the authority's regional land drainage committee but shall exceed".

52. In section 37(4) of the 1968 Act (grants in respect of the cost of works executed by agreement with other persons) after "water authority" insert "or internal drainage board".

The Agriculture Act 1970

1970 c. 40.

53. In subsection (4) of section 88 of the Agriculture Act 1970 (power of Greater London Council to provide flood warning system) for the words "section 51 of the Land Drainage Act 1930 and section 40 of the Land Drainage Act 1961" substitute "section 4 of the Land Drainage (Amendment) Act 1975", and for paragraph (i) of that subsection substitute—

- "(i) in the case of the said section 4, in relation to, and to the functions under this subsection of, the Greater London Council as it applies in relation to, and to the functions of, an internal drainage board, or".

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The Local Government Act 1972

1972 c. 70.

1961 c. 48.

54. In paragraph 25 of Schedule 29 to the Local Government Act 1972 (amendments of Land Drainage Act 1961)—

(a) in sub-paragraph (1) omit the words from “and for the word” to the end of the sub-paragraph; and

(b) in sub-paragraph (2) omit the words from “and at the end” to the end of the sub-paragraph.

1973 c. 37.

The Water Act 1973

55. In section 6(3) of the Water Act 1973 after “charges” insert “applying for a charges option order pursuant to section 19(7) below”.

56. In section 19(1) of that Act (discharge of water authority's functions by their regional land drainage committee) for “making” substitute “raising” and after “precepts” insert “the making of an application for a charges option order”.

57. In paragraph 11 of Schedule 5 to that Act (precepts by water authorities to local authorities)—

(a) in sub-paragraph (11) (carrying forward excesses or deficiencies to the next financial year) for “the next financial year” substitute “the financial year following that in which the determination is made or (at the option of the water authority) the next financial year after that following financial year”, and for the words “that next financial year” substitute “the financial year to which it is brought forward”; and

(b) in sub-paragraph (13) (definitions) at the end of the definition of “relevant expenditure” insert “and this shall be taken to include an appropriate proportion of the administrative expenses of the authority, of the expenses of their research and related activities, of any amount allocated by them to reserve pursuant to paragraph 31(1) of Schedule 3 to this Act; and of any payment to the Council pursuant to paragraph 33 of that Schedule”.

SCHEDULE 3

Section 9(2).

REPEALS

ACTS

Chapter	Short Title	Extent of Repeal
11 & 12 Geo. 5. c. lxxxviii.	The Lancashire County Council (Drainage) Act 1921.	The whole Act.
13 & 14 Geo. 5. c. xcvi.	The West Riding of Yorkshire County Council (Drainage) Act 1923.	The whole Act.
20 & 21 Geo. 5. c. 44.	The Land Drainage Act 1930.	Section 4(1A). In section 8(1), the words "subject to subsection (1A) below". Section 8(1A). In section 16, the words from the beginning to "and". Section 11(2). Section 43. Section 51. Section 67.
9 & 10 Geo. 6. c. 49.	The Acquisition of Land (Authorisation Procedure) Act 1946.	In Schedule 4, the entry relating to the Land Drainage Act 1930.
6 & 7 Eliz. 2. c. 37.	The Drainage Rates Act 1958.	Section 1(2) to (6).
9 & 10 Eliz. 2. c. 48.	The Land Drainage Act 1961.	Section 3(1A). Section 11(3). In section 34(1), the words "forty-three" and the words from "and section forty" onwards. Section 40. In section 43, the words from "and the provision" onwards. In section 52(2), the concluding paragraph. In Schedule 1, paragraphs 17(2) and 18.
1963 c. 33.	The London Government Act 1963.	In Schedule 14, in paragraph 2 the words "and section 51" and in paragraph 7(c) the words from "or by virtue" onwards.
1968 c. 34.	The Agriculture (Miscellaneous Provisions) Act 1968.	In section 36(2), the words from "section 75" to "and".
1972 c. 70.	The Local Government Act 1972.	In Schedule 29, in paragraph 25(1) the words from "and for the word" onwards and in paragraph 25(2) the words from "and at the end" onwards.
1973 c. 37.	The Water Act 1973.	In Schedule 8, paragraphs 21(4), 22, 23, 72(1) and (2) and 74.

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INSTRUMENTS

No.	Title	Extent of Repeal
1971 No. 1732. 1974 No. 595.	The Temples Order 1971. The Local Authorities etc. (Miscellaneous Pro- visions) (No. 2) Order 1974.	Paragraph (a) of Article 5(4). Article 3(5).